IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 2

COMP. APPL/62(CH)2024
And
CP(CAA) No. 20/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:

Amon Estates Pvt. Ltd. & Ors. …Transferor Company

With

DLF Southern Towns Pvt. Ltd. …Transferee Company

Under Section: 230-232, CA 2013, R 11 NCLT

Order delivered on 27.09.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the petitioner/ applicant	:	Mr. U.K. Chaudhary, Senior Counsel with Mr. Abhinav Sood, Advocate Ms. Anmol Gupta, Advocate Mr. Pulkit Goyal, Advocate Mr. Shravan, Advocate Ms. Manisha Chaudhary, Advocate Ms. Manisha Sharma, Advocate
For the Income Tax Department	:	Mr. Yogesh Putney, Senior Standing Counsel
For the OL	:	Mr. Edward Augustine George
For the ROC/RD	:	Mr. Vineet Khatri, Company Prosecutor

ORDER

It is noted that one unsecured creditor representing 17% in value have casted the vote against the resolution, however, such votes was invalidated due to non-compliance of Section 113 of the Companies Act, 2013.

A date is requested by learned Senior Counsel for the petitioner for filing a short note with compendium of judgments with regard to the issuance of notice under Section 230(5) of the companies Act 2013, read with Rule 16(2) of the Companies (Compromises, Arrangements and Amalgamation) Rules 2016 to the persons holding not less than 10% of the shareholding or having outstanding debt amounting to not less than 5% of the total outstanding debt as per the latest financial statement. Let the same be filed within one week.

It is stated by learned Senior Standing Counsel for Income Tax Department that they have not filed the report in respect of transferee company and with respect to transferor companies, they have general observation and have no objection. He is directed to file No Objection Certificate for the transferee company within one week with a copy in advance to the counsel opposite.

It is stated by Mr. Vineet Khatri, Company Prosecutor that after examination of the response of the petitioner-companies, the RD/ROC has no objection of the scheme.

It is stated by learned Senior Counsel for the applicant companies that RERA Tamil Naidu has been issued notice twice and no response has been given by them. Last opportunity is granted to RERA, Tamil Naidu for filing the response if any, within next one week. Learned Senior Counsel for the applicant company is directed to inform the next date of hearing through e-mail or by registered post and file an affidavit to that effect. It is also stated by learned counsel for the petitioner companies that companies have no other project in other States in India except Tamil Naidu.

The counsel of petitioner companies has submitted that the petitioner companies proposed to change the appointed date to 01.04.2022 instead of 01.04.2021 as mentioned in the scheme. On specific query regarding consent of

shareholders and creditors for the same, it was submitted by the counsel of the petitioner companies that they on their affidavits have already authorized the Board of Directors of the respective companies to make change in that regard in the scheme.

Let the matter be listed on 25.10.2024 in the supplementary list.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

PBS